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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

06/16/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S PRELIMINARY
STATEMENT AND PRAYER**

(CRC 3.1112(b))

Dept.: 302
Date: June 24, 2026

**PLAINTIFF'S PRELIMINARY STATEMENT AND PRAYER FOR THE
JUNE 24, 2026 CONSOLIDATED HEARING**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** June 16, 2026 **Filed**
by: Plaintiff Dylan Franciscus Rosario, Self-represented **Related case:** Rosario v. Abdelhalim et
al. (CGC-25-631801, Dept. 301, Hon. Christine Van Aken)

I. AUTHORITY TO FILE; NON-EX PARTE DISCLOSURE

Plaintiff submits this Preliminary Statement and Prayer under California Rules of Court, rule
3.1112(b) ("other papers"), rule 3.1113(j) (incorporation by reference), and rule 3.1300(d), and
for the June 24, 2026 consolidated hearing line under Code of Civil Procedure section 1005. The

1 hearing authority is the May 13, 2026 minute order and court-ordered consolidation of all pending
2 Department 302 matters into the June 24, 2026 hearing line (see Plaintiff's Notice Acknowledging
3 Court-Ordered Consolidation, filed May 21, 2026).

4 As a non-memorandum other paper under rule 3.1112(b), this document is not subject to the fifteen-
5 page cap of rule 3.1113(d). It supplements Plaintiff's Bench Brief re Gateway Sequencing and
6 Inland Oversight (filed May 12, 2026, Tab 26) and Plaintiff's Supplemental Bench Brief re Judi-
7 cial Roadmap (filed June 15, 2026) without duplicating them, and incorporates by reference the
8 operative papers designated at Transaction ID 79429280 (filed May 8, 2026), Tab 42 (RFJN of the
9 May 12, 2026 anti-SLAPP order in Case No. 801), and supplemental RJN Tabs 50 through 51C.
10 This is not an ex parte communication. Plaintiff files this document through the San Francisco
11 Superior Court electronic filing portal and simultaneously serves all counsel of record under Code
12 of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a concurrent Proof
13 of Service (POS-050). Electronic service consent is on file per seq 009 (March 6, 2026).

14 II. PRELIMINARY STATEMENT (VOLUME OF FILINGS)

15 Your Honor, I must begin with a sincere and profound apology. I am acutely aware of the daunting
16 mountain of paperwork and material currently sitting on your desk. As a self-represented litigant,
17 the very last thing I ever intended to do was burden this chambers or overwhelm your schedule
18 with an exhaustive ledger of filings.

19 However, I respectfully ask the Court to understand that this massive paper trail is not of my
20 making. This volume is the direct, inevitable result of the defense's tactical strategy.

- 21 • The defense chose to launch **three distinct, heavy-handed motions** simultaneously.
- 22 • They followed those up by filing an endless cascade of replies upon replies.
- 23 • This paper storm was entirely engineered by their own doing, designed to bury a solo litigant
24 under sheer volume.

25 Had defense counsel simply fulfilled their foundational duty as officers of this court, had they
26 chosen to disclose the clear, controlling statutory authority of **California Code of Civil Procedure**
27 **section 425.17(c)** and the cross-case record already adjudicated in companion Case No. CGC-25-
28

631801, this entire labyrinth of paperwork would have been completely unnecessary. Instead, they chose the route of procedural gamesmanship, intentionally concealing a clear statutory carve-out and a binding litigation posture they themselves sold to Department 301. This forced me to draft hundreds of pages just to bring the objective reality of California law and the objective reality of their own prior positions to light.

III. PRELIMINARY STATEMENT (PRO SE LITIGANT CONTEXT)

I ask the Court to look past the lack of corporate polish in these documents and see the sheer human effort behind them.

It is an exhausting, terrifying, and profoundly isolating experience to stand entirely alone in a courtroom, matching resources with a multi-billion-dollar insurer (CSAA) and a premier, multi-attorney law firm (Porter Scott).

While they have teams of specialized associates, billable hours, and corporate backing, I have only my own two hands, late nights at a kitchen table, and an unwavering belief in the truth. The emotional and physical toll of fighting this giant by myself cannot be overstated.

Every deposition they forced me to attend, every financial hurdle they erected, and every procedural trap they set was designed to make me break. They operated under the assumption that a regular citizen would lack the stamina, the money, or the capability to expose their conduct.

IV. GRAVAMEN: DECEIT, DENIAL, AND DELAY

I am not here to engage in a hyper-technical war of words. I am here because I am trying to survive, and I am praying for this Court to finally adjudicate a systematic corporate strategy of **Deceit, Denial, and Delay**.

This entire conflict stems from a devastating, near-fatal event where I was almost killed by a driver who explicitly confessed liability on a recorded 911 call. Instead of treating my family and business with basic human decency, CSAA chose to:

1. **Fabricate a False Narrative:** Issue a summary denial mere days after my release from the hospital, falsely claiming they conducted a “good-faith investigation.”

1 2. **Suppress Material Evidence:** Intentionally hide the 911 audio confession already in their
2 possession to trick me into abandoning my rights.

3 3. **Inflict Ongoing Harm:** Weaponize the legal system to force me into avoidable, protracted,
4 and crushing litigation, absorbing the catastrophic costs of depositions, experts, and investi-
5 gators just to uncover a truth they always held.

6 **The Factual Core: Paragraph 21A and the Insured’s Confession**

7 The deception at the heart of this case is stripped bare by a single, undeniable record fact. As set
8 forth in the operative complaint, CSAA is caught in an inescapable logical dilemma of its own
9 making:

10 **Your Honor, if the Court takes the complaint as true, CSAA represented on Febru-**
11 **ary 25, 2021 that its investigation was concluded and liability denied, while CSAA**
12 **had not obtained the 911 recording containing its own insured’s admission that he**
13 **“barely hit” plaintiff. CSAA cannot simultaneously claim it reviewed available ev-**
14 **idence, that the jury vindicated the denial, and that plaintiff did not rely. Under**
15 **paragraph 21A, either the investigation was not concluded, or it was concluded and**
16 **CSAA ignored a party admission of contact. That is enough for minimal merit on**
17 **fraud and UCL regardless of CSAA’s privilege labels.**

19 **V. CSAA’S IRRECONCILABLE POSITIONS (801 VS 802)**

20 The defense asks this Court to grant them total immunity by hiding behind two fundamentally
21 incompatible, diametrically opposed stories across these related cases. What does California law
22 call a litigant who takes one factual posture to win a procedural victory in Department 301, and
23 then adopts the exact opposite narrative to escape liability in Department 302? The courts call it
24 **“playing fast and loose with the judicial system”,** an abuse of the process that triggers immediate
25 **Judicial Estoppel.**

26 CSAA attempts to escape accountability by intentionally collapsing **three distinct legal chan-**
27 **nels** into a single bucket: (1) **regulated claim-handling**, (2) **litigation privilege / Anti-SLAPP**
28 **petitioning**, and (3) **actual litigation**. On February 25, 2021, only channel (1) was in play.

Dimension	Case 801 (The Shield)	Case 802 (The Sword)
Position	Statements regarding the 911 tape are immune litigation conduct and completely shielded from extrinsic fraud review.	CSAA had no obligation to gather or review that same 911 tape when it certified its pre-suit investigation was “concluded” in 2021.
Legal frame	Protected petitioning under CCP section 425.16	Protected pre-litigation speech; no duty to investigate

Side A: The Case 801 Shield (Extrinsic Fraud Immunity)

In Case No. 801, CSAA successfully argued that all of its trial-facing statements and physical handling of the “silent witness” (the 911 tape containing their insured’s near-fatal contact admission) constitute protected litigation conduct under the anti-SLAPP statute. They asserted that because this material was handled during active litigation, their conduct is entirely immune from any extrinsic fraud claims or equitable review. They wrapped themselves in the mantle of the court to escape equity.

Side B: The Case 802 Sword (The Non-Investigation Defense)

But here in Case No. 802, Porter Scott pivots entirely. They now argue that during the pre-litigation claims-handling process, CSAA had no legal obligation to collect, review, or use those exact same materials to determine liability. They argue that their February 25, 2021 denial letter (which explicitly stated their investigation was “concluded”) is protected speech, while simultaneously admitting at trial that they never actually performed the pre-suit investigation they claimed to have completed years earlier.

VI. STATUTORY, REGULATORY, AND COMMON-LAW MATRIX

California code explicitly strips an insurer of the right to issue a “rubber-stamp” or premature denial. The insurer is legally required to establish a factual foundation before turning away a

claim. CSAA possesses three sequential, non-delegable duties that cannot be bypassed by anti-SLAPP procedural gamesmanship:

A. The Absolute Duty to Investigate (10 CCR section 2695.7(d))

Under **California Code of Regulations Title 10, Section 2695.7(d)**, an insurer is legally mandated to establish a factual foundation before turning away a claim: “Every insurer shall conduct a reasonable investigation before denying any claim.”

Issuing a denial letter at day 21 without pulling the 911 audio recordings, police computer-aided dispatch (CAD) logs, or interviewing their own insured is a per se violation of this mandate. An investigation cannot legally be characterized as “concluded” if the most basic, outcome-determinative evidence of liability was intentionally left uncollected.

B. The Duty to Report Truth Regarding Investigation Status (10 CCR section 2695.7(b) and Civ. Code section 1710)

When an insurer issues a formal notice stating an investigation is “concluded,” that statement must be a truthful reflection of operational reality under **10 CCR section 2695.7(b)**. Representing an investigation as complete when key, outcome-determinative party admissions were intentionally left uncollected constitutes statutory deceit under **California Civil Code Section 1710**:

- **Civil Code section 1710(2) (Reckless Misrepresentation):** Asserting as a fact that which is not true, without reasonable grounds for believing it true. By telling Plaintiff their investigation found no liability while willfully blinding themselves to the 911 tape, CSAA made a factual assertion without reasonable grounds.
- **Civil Code section 1710(3) (Concealment):** The suppression of a fact by one who is bound to disclose it. By giving Plaintiff a definitive denial letter, they gave information designed to mislead Plaintiff into abandoning the claim, while actively suppressing the fact that their own insured had already confessed to contact.

C. The Duty to Disclose and Detrimental Reliance (Civ. Code section 1709 and Bus. and Prof. Code section 17200)

If an investigation reveals an explicit admission of fault by the insured (e.g., admitting he “barely hit” the plaintiff), the insurer is legally bound to acknowledge that liability rather than suppress

1 it. The defense will argue Plaintiff did not “rely” on their denial letter because Plaintiff sued
2 anyway. However, under **Civil Code Section 1709**, a third-party claimant relies to their detriment
3 when an insurer’s reckless deceit forces them to alter their position from an ordinary claimant
4 into a distressed litigant, absorbing crushing out-of-pocket costs for depositions, investigators, and
5 experts to uncover a confession the insurer originally concealed.

6 This systemic pattern of premature denials further serves as the predicate “unlawful and fraudu-
7 lent” practice under the Unfair Competition Law (**Business and Professions Code Section 17200**),
8 as it is inherently designed to deceive vulnerable claimants into believing their claims are legally
9 meritless.

11 **VII. CHRONOLOGY AND 801 RECORD**

12 The defense asks this Court to decide three dispositive motions in Case No. 802 while pretending
13 that what CSAA already argued, and what Department 301 already accepted, in Case No. 801 does
14 not exist. The two cases are complementary, not duplicative:

Dimension	CGC-25-631801 (801)	CGC-25-631802 (802)
Department	301 (Hon. Christine Van Aken)	302 (Hon. Joseph M. Quinn)
Gravamen CSAA won on	Litigation conduct (MILs, in-court statements, file handling)	Pre-litigation denial letter and institutional claim practice
May 12, 2026 result	Anti-SLAPP granted on litigation-conduct frame	801 order judicially noticed here; not res judicata on letter fraud

15 **The Presumed True Claims Chronology**

16 On the date the denial letter was issued, there was no judicial proceeding, no filed case, and no
17 litigation machinery running. There was only an unrepresented third-party claimant facing an

insurance file.

Date	Event	Legal Channel Status
Feb. 4, 2021	Collision	Incipient injury claim
Feb. 25, 2021	CSAA Denial Letter (~21 days later)	Regulated Commercial Claim-Handling Only
Before Feb. 25	No lawsuit filed; no case number; no court	No litigation channel in existence

As set forth in Plaintiff’s supplemental pleading (**paragraph 16A**), at the time of the denial:

- No litigation was pending or seriously contemplated by any party;
- Plaintiff was entirely unrepresented by counsel;
- No demand letters had been exchanged, and no tolling agreements existed;
- CSAA had issued no litigation-hold or preservation letters, and had established no litigation reserve.

Rejection of Defendant’s Core Material Errors

CSAA’s motion stacks three fundamental legal errors that this Court must reject under established California precedent:

1. **Regulatory Deadlines Do Not Equal Litigation Anticipation:** The 40-day rule under **CCR section 2695.7** is an ordinary commercial obligation of selling insurance services. It is a commercial claim-handling regulation, not a mechanism that magically converts every ordinary claim-file denial into “petitioning activity” under **CCP section 425.16** or privileged speech under **Civil Code section 47(b)**.
2. **A Disputed Claim Is Not “Imminent Litigation”:** Under Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1248 through 1249, pre-litigation speech is privileged only when litigation is imminently anticipated and “in good faith and under serious consideration.” A bare liability denial sent to an unrepresented consumer is the closing of a commercial file, not preparation for a judicial proceeding. If every denied claim automatically triggered anti-SLAPP protection, no consumer could ever sue an insurer for claim-handling

1 fraud.

2 3. **Subsequent Lawsuits Cannot Retroactively Baptize Commercial Fraud:** Under **Park v.**
3 **Board of Trustees** (2017) 2 Cal.5th 1057, 1064, anti-SLAPP protects activity only when
4 the protected speech or petitioning is itself the wrong complained of, not when it serves as
5 evidence of a different wrong. Here, the gravamen is the noncommunicative failure to inves-
6 tigate and the fraudulent misrepresentation that the investigation was complete. The denial
7 letter is the structural vehicle and evidence of the fraud, matching **Kimmel v. Goland** (1990)
8 51 Cal.3d 202 (privilege protects communications, not independent operational omissions).
9

10 **VIII. QUESTIONS FOR THE COURT**

11 Your Honor, to ensure the record is clear for eventual appellate review, I respectfully submit the
12 following distinct, legally focused questions for determination at the June 24, 2026 hearing. The
13 resolution of the defense's 802 motions turns directly upon these foundational threshold issues:

14 **Question 1 (Judicial Estoppel and Gravamen Realignment)**

15 Whether judicial estoppel precludes a defendant insurer from treating its pre-suit claims-handling
16 and denial letter as protected petitioning activity under **Code of Civil Procedure section 425.16**
17 in Case No. 802, when it previously represented in Case No. 801 that the gravamen of the dispute
18 was strictly litigation conduct to defeat the commercial speech exemption of **section 425.17(c)**,
19 and where acceptance of both positions would permit the insurer to benefit simultaneously from
20 claiming a litigation-conduct frame for one purpose and a pre-litigation commercial frame for
21 another.

22 **Question 2 (Judicial Estoppel and Knowledge of Evidence)**

23 Whether judicial estoppel precludes a defendant insurer from denying knowledge or review of ma-
24 terial liability evidence at the time of claim denial when it previously represented that it possessed,
25 maintained, and produced the same evidence, and where acceptance of both positions would per-
26 mit the insurer to benefit simultaneously from claiming possession of the evidence for one purpose
27 and non-possession or non-review of the evidence for another.

1 **Question 3 (Judicial Estoppel and Corporate Attribution)**

2 Whether judicial estoppel precludes a defendant insurer from disclaiming an institutional litigation
3 role or responsibility for its trial counsel's record representations in Case No. 802, when it
4 previously represented in Case No. 801 that those exact in-court statements constituted its own
5 protected corporate petitioning under **Code of Civil Procedure section 425.16(e)(2)**, and where
6 acceptance of both positions would permit the insurer to benefit simultaneously from adopting
7 counsel's statements as protected corporate activity for one purpose and disclaiming corporate
8 attribution or agency for another.

9 **Question 4 (Judicial Estoppel and Standard of Review on 'Arguendo' Defenses)**

10 Whether judicial estoppel and the governing standards of review preclude a defendant insurer from
11 evading its prior records by characterizing them as non-binding arguendo hypotheticals, when
12 it previously represented those positions as judicially cognizable facts to secure procedural dismissal,
13 and where acceptance of both positions would permit the insurer to benefit simultaneously
14 from treating factual premises as binding realities to win an anti-SLAPP motion in one forum and
15 as fluid hypotheticals to escape the mandatory truth-presumption of **First Amended Complaint**
16 **Paragraph 21A** in another.

17 **Question 5 (Judicial Estoppel and Mandatory Statutory Sequencing)**

18 Whether judicial estoppel and the rules of mandatory statutory sequencing preclude a defendant
19 insurer from forcing a prong-two merits analysis under **Code of Civil Procedure section 425.16**
20 in Case No. 802, when it previously represented that threshold gravamen boundaries and statutory
21 exemptions must be adjudicated first, and where acceptance of both positions would permit
22 the insurer to benefit simultaneously from invoking strict procedural sequencing under **Inland**
23 **Oversight Committee v. City of San Diego** for one purpose and bypassing the threshold commercial
24 speech exemption of **section 425.17(c)** for another.

25 **Question 6 (Timing and Commercial Frame Boundary)**

26 May CSAA treat the February 25, 2021 denial letter as protected pre-litigation petitioning under
27 **CCP section 425.16** and **Civil Code section 47(b)** when, presumed true, no litigation was pending
28 or seriously contemplated, Plaintiff was unrepresented, no demand or tolling existed, and CSAA's

only regulatory obligation was commercial claim-handling under **10 CCR section 2695.7**, and where acceptance of the defense’s position would permit an insurer to benefit simultaneously from claiming a regulatory timeline for ordinary business operations while claiming court-connected procedural immunities for the same letter?

IX. PRAYER FOR RELIEF

While the defense attempts to use an anti-SLAPP motion under **section 425.16** as an artificial shield, California common law is clear. Under the landmark Moradi-Shalal jurisprudence, while third-party statutory claims are restricted, the California Supreme Court explicitly preserved our right to bring independent common-law actions for fraud and deceit under **Civil Code sections 1709 and 1710** when an insurer steps outside its role and acts as an independent tortfeasor.

In **802**, CSAA is the sole defendant and the direct commercial speaker. The audience was a consumer claimant, and the statement was made in the ordinary course of delivering an insurance product. The Legislature enacted the commercial speech exemption of **Code of Civil Procedure section 425.17(c)** precisely to stop corporate insurers from utilizing anti-SLAPP machinery to extinguish consumer-facing fraud claims prior to discovery.

WHEREFORE, Plaintiff respectfully prays that this Court:

1. **Answer** the six questions stated in Section VIII on the record at the June 24 hearing, or in a written order if the Court prefers.
2. **Take judicial notice** under Evidence Code sections 451, 452(d), 452(h), and 453 of the May 12, 2026 anti-SLAPP order and defense filings in Case No. 801 (Tab 42; supplemental RJN Tabs 50 through 51C).
3. **Resolve threshold sequencing first** under Inland Oversight and CCP section 425.17(c) before any prong-two analysis in 802.
4. **Deny** the dispositive motions (anti-SLAPP, demurrer, and CCP section 436 motion to strike) if CSAA cannot maintain one coherent position on the same nucleus of materials across the related cases.
5. **Elevate substance over form**, pierce through the slick defense spin and manufactured pro-

cedural hurdles, and hold this multi-billion-dollar entity accountable for the independent, reckless deceit they inflicted upon my family.

X. SCOPE RESERVATION

Plaintiff preserves the division of labor between Departments 301 and 302:

- **Department 302 does not adjudicate** 801 anti-SLAPP merits on the litigation-conduct frame or extrinsic-fraud equity theories reserved to Case No. 801.
- **Department 302 may notice** 801 adopted positions and **apply** them as constraints under Aguilar, Park, and Inland Oversight when resolving 802 threshold and motion arguments.
- **Fraud merits** in the 802 First Amended Complaint proceed here without merging 801 extrinsic-fraud adjudication.

No order on 801 merits is requested. Only answers to the questions above and correct sequencing on the 802 motions are sought to ensure that fraud merits may proceed on the Insurance Code and Fair Claims Settlement Practices Regulations floor.

Date: June 16, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
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Dated: May 25, 2026



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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Page limit for memorandum	Length within applicable limit	Page count
2	CRC 3.1113(b)	Required sections (facts, law, argument)	Organized sections in body	Memorandum body
3	CRC 3.1113(j)	Incorporation by reference where used	ROA placeholders in text	Body sections
4	CCP 1005(b)	Reply timing cross-reference where applicable	Reply deadline cited if applicable	Body